

STATE OF NEW YORK

2183--A

2025-2026 Regular Sessions

IN SENATE

January 15, 2025

Introduced by Sen. PARKER -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the energy law and the public authorities law, in relation to the availability of alternative fuels along the New York state thruway

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "electric super highway act".

3 § 2. Section 1-103 of the energy law is amended by adding a new subdi-
4 vision 16 to read as follows:

5 16. "Alternative fuel" shall mean ethanol, bio-diesel, electricity
6 (including electricity from solar energy), green hydrogen, and any other
7 fuel identified which is not petroleum-based, which is consistent with
8 the goals of protecting the safety and health of the public and minimiz-
9 ing emissions of air pollutants, and which is consistent with the
10 climate justice and emission reduction mandates in chapter one hundred
11 six of the laws of two thousand nineteen, and such successors in law and
12 function as may arise from time to time, and any applicable federal
13 alternative fuel requirements.

14 § 3. The energy law is amended by adding a new section 5-129 to read
15 as follows:

16 § 5-129. Alternative fuels. The New York state energy research and
17 development authority shall provide the New York state thruway authority
18 with a list of the most feasible alternative fuels, which shall number
19 no fewer than three, and assist the authority in implementing the
20 requirements of section three hundred fifty-four of the public authori-
21 ties law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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§ 4. Subdivision 10 of section 354 of the public authorities law, as amended by section 2 of part TT of chapter 54 of the laws of 2016, is amended to read as follows:

10. To construct, reconstruct or improve on or along the thruway in the manner herein provided, suitable facilities for gas stations, restaurants, and other facilities for the public, or to lease the right to construct, reconstruct or improve and operate such facilities; such facilities shall be publicly offered for leasing for operation, or the right to construct, reconstruct or improve and operate such facilities shall be publicly offered under rules and regulations to be established by the authority, provided, however, that lessees operating such facilities at the time this act becomes effective, may reconstruct or improve them or may construct additional like facilities, in the manner and upon such terms and conditions as the board shall determine; and provided further, however, that each such facility which contains or consists of a gas station shall, beginning November first, two thousand twenty-nine, include a facility for selling to the public an alternative fuel, as defined in section 1-103 of the energy law and each alternative fuel recommended to the authority by the New York state energy research and development authority pursuant to section 5-129 of the energy law shall be made available at intervals of no more than one hundred twenty miles on each side of the thruway;

§ 5. This act shall take effect immediately.